
CRIMINALS

A one-act play about marriage

By GEORGE MIDDLETON

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CRIMINALS

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COMEDY

CRIMINALS

A ONE-ACT PLAY ABOUT MARRIAGE

BY GEORGE MIDDLETON



NEW YORK

B. W. HUEBSCH

MCMXV

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INTRODUCTION

Truth to life does not necessarily imply truth in art. Though all human nature is material for the author and there is no immorality in art save insincerity in its treatment, I should be the first to admit the danger of deducing a generality from an isolated instance. Therefore, the fact that this play was founded on an actual occurrence would not alone have prompted my using so intimate a theme of life in the art form. And since the dramatist must inevitably select the high lights so that he may suggest the larger problems radiating beyond the mere episode, the arrangement of events in “Criminals” may seem exceptional. Nevertheless, in spite of the compression, necessitated by the one-act form, the human reactions in this play and its basic situation are by no means so uncommon as one might casually assume.

It would be easy for the incredulous to deny and for the cynical to scoff at its premise of complete virginal ignorance; but that would not erase the records of medical literature. Psychologists and neurologists, who have related divorce to something more than legal causes, have also given abundant testimony to the part which initial sex experience has ultimately played in the wreckage of marriage. And I have myself been greatly surprised at the large number of collateral cases which have been brought to my attention since this was written and produced—cases of women whose experiences have, in essence, been similar to Janet’s, though their reactions have been translated into a less radical course of conduct.

I have not sought to dramatize a particular pathological phenomenon: I have written this play because I believe it intimates the human drama which, with varying degrees of intensity, may lurk in this phase of marriage. The resolution arrived at is not a playwright’s conclusion intended to preach a moral: it is legitimately achieved, I hope, through the shock of juxtaposed characters finding a new point of view under stress of circumstance, tragic to them.

The advantage of play publication, as I have indicated in my other volumes, is that the dramatist has a written record of his endeavor,

accessible to those who may be interested in his work where wide production, for obvious reasons, is denied it.

I should be ungrateful did I not here express my appreciation to Miss Aline Barnsdall, for her courage in producing this play, as well as my thanks to the little company who interpreted, with rare tact and delicacy, the very difficult rôles which were intrusted to them.

G. M.

September tenth, 1915.

CRIMINALS

FIRST PERFORMANCE

at the Fine Arts Theatre, Chicago,
February third, 1915,
under the management of
The Players Producing Company.

THE CAST

ALFRED YORK	FRED PERMAINE
ANN, <i>his wife</i>	FLORENCE LE CLERCQ
JANET, <i>their daughter</i>	BERNICE GOLDEN
CARTER MERWIN	FRANK STIRLING

SCENE: *The York home: about ten o'clock,
one Spring evening.*

Produced by the Author.

CRIMINALS

A cozy sitting room on the second floor of a small house is disclosed, as the curtain slowly lifts. It is conventional in furnishing, with a family portrait or two looking down complacently upon the methodically placed chairs, sofa and large mahogany table. The two windows at the right are draped with light curtains which are similar to those neatly hung across the opening in back. This leads to the hall-way and stairs beyond. At the left is a door opening into JANET'S room. Except for the telephone, with a switch attachment, which rests on the table, there is nothing modern in the room; all the details, in fact, indicate the settled nature of the occupants who have apparently lived there for many years. The hall-way is dark, but the room itself is softly lighted by the tall red-shaded lamp which stands back of the sofa. The moonlight, too, faintly trickles in at the windows.

MR. and MRS. YORK are alone. The door into JANET'S room is open and MRS. YORK is silently gazing at it. She is seated on the sofa and has ceased sewing. He is in a deep chair, by the table, trying to read the evening paper. But he cannot seem to concentrate on it; he looks toward his wife now and then as though both were dwelling on the same thought.

YORK, in his late forties, is a rather obvious kindly man with a quiet voice and gentle manner. He wears a frock coat.

MRS. YORK, somewhat younger, is also a lovable personality who has expended all her energies within the concentrated limits of her home life. She still wears her formal gray afternoon gown.

They are, in fact, a harmoniously happy couple, reticent with regard to their inner feelings, and instinctively submissive to certain conventions which, until now, the easy habit of life has never made them question.

MRS. YORK

[With a sigh]

I can't help thinking we shan't see Janet come from that room again.

YORK

No.

MRS. YORK

Now she's gone we'll leave everything in there just as it is.

YORK

Yes.

MRS. YORK

[*With contented recollection*]

She was so happy here.

YORK

She had a good mother.

MRS. YORK

[*Lovingly eyeing him*]

And father, Fred.

YORK

I'm just an ordinary sort of person.

MRS. YORK

But she appreciated all that you did for her.

YORK

A father isn't much guidance to a daughter. It's the mother who counts there.

MRS. YORK

I did everything I could to bring her up properly. [*Sighing again*] But times have changed since *I* was a girl. One has to be so careful.

YORK

It's the mothers who have changed—letting their girls go about just as if they were boys. There wouldn't be so much trouble, Ann, if all mothers were companionable like you.

MRS. YORK

I was glad I *could* devote all my time to Janet. I can almost be happy now that I'm alone—thinking of that.

YORK

It was the greatest joy in my life to see you two so inseparable. Why, Janet hardly left your side, did she?

MRS. YORK

No. When I was with her I always felt as though I were walking in a garden of lilies.

YORK

Yes, pure white.

MRS. YORK

I often wondered why she liked white furniture.

YORK

It was like herself somehow, I suppose.

MRS. YORK

[She goes to him]

And to-night will be the first time she's ever been away from me.
[Shuddering] To-night!

YORK

There, dear, don't worry.

MRS. YORK

[With instinctive reserve as she takes his hand]

You know what I'm thinking?

YORK

Yes.

MRS. YORK

I hate to think of such things.

YORK

[Trying to be cheerful]

Then don't let's talk of them. Carter is her husband now.

MRS. YORK

I know. It's strange how girls grow up in a place and then leave when the first man....

YORK

[With consoling assurance]

He's a good chap and early marriages are best.

MRS. YORK

Yes. And she seemed so sure of herself. *[There is a pause as she thoughtfully goes to window and gazes out]* What time is it?

YORK

Just ten.

MRS. YORK

I'm so glad they told us where they were going.

YORK

But didn't you feel as though it spoiled their little romance for us to know?

MRS. YORK

[Smiling]

Nothing could spoil their romance; it was like a story-book. But Janet really wanted us to go down to the boat to-morrow and see her off. *[Wistfully]* It must be nice to have a honeymoon in Italy.

YORK

[Trying to be cheerful throughout]

Carter's got more money than *I* had when you and I were married.

MRS. YORK

[*Affectionately*]

But they won't have a happier time over there than we did in Washington, will they? [*After another silence*] I—I thought perhaps she'd 'phone us to let us know she reached the hotel safely.

YORK

[*Playfully*]

We didn't think of 'phoning.

MRS. YORK

Mother didn't have a 'phone then. [*In recollection*] But I thought of her. [*They smile; then she puts her arm on his shoulder, as she stands behind his chair*] Oh, Fred, I....

YORK

[*Understandingly*]

You mustn't feel like this about Janet, dear. Everything will be as it should be—just as it was between us. Carter's a fine fellow and....

MRS. YORK

She's only a little girl.

YORK

So were you, Ann, when I took you away from your mother.

MRS. YORK

It's foolish of me I know, but.... [*As though wishing to change the subject*] The room and hall-way are full of fragrance.

YORK

Suppose we send her wedding flowers to the hospital to-morrow.

MRS. YORK

You are always so thoughtful, Fred. I'll tell Mary in the morning.

YORK

Shall we go down and look at them again before we go to bed?

MRS. YORK

Yes; I'm tired though. It's been such a long day. [*She goes to him tenderly and puts her arms on his shoulders as he now stands facing her*] Fred, it takes me back.

YORK

Some twenty years, eh?

MRS. YORK

We only have each other now.

YORK

Yes; the way it was when we started.

MRS. YORK

It was hard for me to see my little girl go. [*She kisses him*] I've been so happy here with you and Janet. [*The telephone rings. She goes to it*] I knew she'd 'phone. Let me go, Fred. I want to hear her voice. [*Taking off the receiver eagerly*] Yes, hello! Is that you, Janet? No?... You wish to speak to Mr. York? Is that you, Carter? Yes; he's here. [*She slowly hands the receiver to YORK as she stands half trembling with sudden premonition*] Carter wants to speak to you. [*YORK slowly takes the receiver*] Oh, I'm afraid.

YORK

[*At 'phone*]

Yes, Carter. [*Startled*] What's that? Coming back here? To-night? [*After a pause*] Yes, of course: you'd better come around yourself right away. Wait. The front door will be unlatched. Come right up to the sitting room. [*He hangs up the receiver and looks at MRS. YORK, who is dumbly questioning him*] Janet's on her way here.

MRS. YORK

Here!

YORK

She left the hotel fifteen minutes ago—alone.

MRS. YORK

[Terrified]

Alone?

YORK

She has her own key?

MRS. YORK

Yes. I wanted her always to keep it. But you told Carter to come also?

YORK

Yes. Has Mary gone upstairs yet?

MRS. YORK

No! *[As YORK goes to telephone and switches it]* What are you doing?

YORK

[Into telephone]

Is that you, Mary? I've just had a 'phone. We are expecting somebody. Put the front door latch back so he can come right up to us. No, I don't want to keep you up: then go to bed. Understand? Good-night.

[He hangs up the receiver. MRS. YORK has gazed before her during this, as though bewildered. There is a long pause before either speaks: then it is in broken tones, full of an implication that is hardly phrased]

MRS. YORK

Fred; something terrible's happened.

YORK

There's no reason to think that.

MRS. YORK

The tone of his voice.

YORK

Now don't give way: it's all right. [*Slowly*] Perhaps....

MRS. YORK

[*Slowly*]

Perhaps what?

YORK

[*Hesitating*]

Well, sometimes....

MRS. YORK

But Carter must have known she....

YORK

[*Half to himself*]

It may be....

MRS. YORK

[*Hysterical*]

Why don't you say what you think?

YORK

I remember men telling me....

MRS. YORK

Do men ever talk of such things?

YORK

Yes: afterwards. [*He apparently hears the maid going upstairs. He goes back to be sure, then turns to his wife*] Mary has gone up to bed.

MRS. YORK

Do you think Janet will tell us?

YORK

If not, why is she coming back here?

MRS. YORK

Where else could she go?... Oh, Fred, this is more than I can stand. Suppose—suppose she doesn't come?

YORK

Nonsense. Shall we go downstairs?

MRS. YORK

No; not where their flowers are. [*She tries to control her growing agitation*] Why doesn't she come?—She ought to be here by now.—Are you *sure* Carter said she was coming here?

YORK

Maybe she walked.

MRS. YORK

[*Murmuring*]

Alone in the street this time of night?

YORK

There's no danger.

[*The curtains are pushed open and JANET enters. She goes hysterically to MRS. YORK and buries her face in her mother's lap, sobbing. YORK comes over beside them, anxiously.*]

JANET YORK, *about nineteen, is the personification of sensitive delicacy and fragile grace. Her present agitation is such that, when words fail, she conveys her meaning through groping, broken tones and suggestion. She is wearing her smart "going away" tailor-made gown and hat*]

JANET

Mother! Mother!

MRS. YORK

My girl! What is it?

YORK

Wait, Ann.

JANET

Oh, I.... I....

MRS. YORK

Don't cry so.

YORK

[Patting her shoulder]

Janet, dear!

JANET

[Looking up at him]

Father!

YORK

Tell us.

JANET

I'll.... I'll tell mother.

MRS. YORK

[Looking at YORK]

Leave us together, Fred. Maybe she'll....

YORK

You'd better tell me, too, in case....

MRS. YORK

Your father's right, Janet.

JANET

I.... I can't *tell* it.

YORK

But your mother's frightened.

JANET

So ... so ... was I—*frightened*.

YORK

But, dear...?

JANET

It was different from.... I didn't know.... Why didn't you tell me?

MRS. YORK

[*Astonished*]

Tell you?

JANET

Yes: what marriage means.... He said *that* was marriage.

[MR. and MRS. YORK *exchange looks, slowly realizing the situation*]

MRS. YORK

Didn't your heart tell you?

JANET

[*Phrasing her feeling with great difficulty throughout*]

Not that. How could it? My heart couldn't know *that*? It stopped. It seemed to snap. It felt ashamed. I'm ashamed now.

MRS. YORK

[*Perplexed*]

But all the time when Carter was with you here, didn't you—didn't your heart...?

JANET

I tell you I never knew there were such things in the world. But *you* knew. You *both* knew! [*Reproachfully*] You should have told me and then I wouldn't have.... Oh, why didn't you tell me?

MRS. YORK

[*Helplessly*]

Fred?

YORK

[*At a loss*]

Don't—don't be harsh at your mother, Janet.

JANET

[*Looking up*]

Then why didn't *you* tell me?

MRS. YORK

How could your father...?

JANET

[*Interrupting abruptly*]

Why not? He let me marry Carter when I came and asked him. My father let me go away with Carter. And you both knew; Carter said you both knew. And neither of you told me.

[*YORK shakes his head slowly as though overcome by it all; they try, however, to console JANET*]

MRS. YORK

Dear, you—you mustn't feel like this about Carter.

YORK

[*Tenderly*]

No—no.

JANET

I can't help how I feel.

YORK

But, Janet; he's your husband.

JANET

Yes. My husband! I know that. But I didn't know what it meant having a husband. [*Quickly*] Does that give him the right if I...?

YORK

Yes, Janet.

JANET

[*More deeply hurt at the thought*]

Then if neither of you would tell me, why didn't *he* tell me before...?

MRS. YORK

[*Shocked*]

Why people don't talk of such things *before* they're married, dear.

JANET

They don't?

MRS. YORK

How could they be so immodest?

JANET

Immodest? Immodest to *talk*? Yet he could...? Oh...!

YORK

What did you think marriage was, dear?

JANET

[*Simply*]

I—I thought it was just being together, like you and father.

MRS. YORK

[*Involuntarily*]

But your father and I....

JANET

[*Retreating from them in realization and astonishment*]

You and father! Oh!

MRS. YORK

Janet.

YORK

Janet!

JANET

Don't touch me, father. [*She moves quickly away from him*] I don't want anybody to put their hands on me again. I—I have to think. I want to *understand* what you said.—I always knew there was *something* I didn't understand.... [*Incredulously*] How could any girl grow up and not...? [*Quickly turning to her mother*] Mother, did you know what—what...? Did you know *this*, when you and Father first...?

MRS. YORK

[*Hardly able to speak*]

No!

JANET

[*Incredulously*]

You didn't know *either*, when you were married?

MRS. YORK

[*Emphatically*]

A good girl shouldn't.

JANET

[*Vehemently*]

A good girl! Then I wish I weren't a good girl!

YORK

Janet!

JANET

[Persistently]

Mother. Didn't you even feel for father as I did to-night when Carter...?

MRS. YORK

[Horried throughout]

No. No. I loved your father.

YORK

And don't you love Carter?

JANET

[Incredulously]

Is that love?

MRS. YORK

It's part of love.

JANET

[Introspectively]

Then—don't I love Carter?

YORK

[Trying to quiet her]

Of course, you do.

JANET

[Speaking as though overcome with a new revelation]

I don't. I don't. How could I love him if I couldn't let—? Oh!—If you, mother, loved father and ... and yet *I* couldn't....

YORK

Janet, you're all nerves. Are you different from other girls?

JANET

[Gazing before her]

I don't know. I can't understand myself—*[Impulsively]* Mother, mother; I hated him!

MRS. YORK

Janet!

JANET

[Shuddering in recollection]

Yes—yes. His face changed ... his eyes ... oh!... And then he—he was sorry. There were tears in his eyes. But I was frightened and ... oh, I thought I belonged to myself.

YORK

[Kindly]

You belong to Carter, and he's coming here for you.

JANET

[Startled]

Coming here?

MRS. YORK

Yes. He 'phoned.

JANET

I thought I was safe here in my home.

YORK

Your home is with him now. You're his wife, Janet. And you promised him....

JANET

[*Indignantly*]

How could I promise something I didn't know about? But you knew what I was promising and you didn't tell me. You didn't tell me! How could you do such a thing? It was a *crime*!

MRS. YORK

[*Deeply wounded*]

A crime?

YORK

Janet, you're talking to your mother.

JANET

My mother; yes; my dear little mother whom I trusted so.

MRS. YORK

You're breaking my heart. I did everything in the world for you.

JANET

[*With great reproach*]

Except tell me the one thing I should have known!

MRS. YORK

Janet!

JANET

And now I understand the strange look you gave me, mother, when you said good-by. You knew you should have told me.

[*MRS. YORK lowers her head. The outer door downstairs is heard opening and then closing*]

YORK

There's Carter.

JANET

I won't see him now.

YORK

Now, Janet: don't be a foolish girl.

JANET

[With a certain calm]

I'm going to my own room.

YORK

You must listen to reason.

JANET

I don't know what you mean by reason.

YORK

[Taking hold of her arms]

Janet, was he...?

JANET

Let me go, father.

YORK

[Forcefully]

Answer me. Was Carter unkind or bru...?

JANET

How should I know? He tried to kiss me—differently. And he didn't tell me before.... I won't see him. I won't. I won't.

MRS. YORK

Janet! Janet!

[JANET goes into her room slamming the door. MRS. YORK holds her hands out after her. YORK seems thoroughly aroused to anger]

MRS. YORK

[Turning helplessly to her husband]

You don't think it was because...?

YORK

[Determined]

That's what I mean to find out. Go to her.

MRS. YORK

And she called me a criminal!

[MRS. YORK almost timidly goes into the room, closing the door. CARTER is heard coming up the stairs. YORK turns and waits with suppressed excitement.

After a moment CARTER MERWIN enters. There is a look of anxiety upon his strongly modeled face. In appearance he is immediately ingratiating since his whole manner suggests great sincerity of character. He is in his early thirties.

He stands there looking at YORK and throughout the following seems deeply moved with pity for JANET. They speak with subdued intensity, never raising their voice for fear the others will hear]

CARTER

Janet's here?

YORK

Yes. With her mother.

CARTER

[Relieved]

I'm glad. *[He starts towards door]* Poor little girl.

YORK

[Stopping him]

Where are you going?

CARTER

To tell her not to worry.

YORK

You can't see her now.

CARTER

Why do you stop me?

YORK

She's my daughter and—

CARTER

[Quietly]

My wife.

YORK

[Halted somewhat by his tone]

What kind of a man are you?

CARTER

What do you mean?

YORK

You know what I mean.

CARTER

I don't understand.

YORK

She's come here seeking my protection.

CARTER

Protection? Her greatest protection would have been a little knowledge.

YORK

[Controlling himself with difficulty]

We kept for you a girl's greatest gift to her husband: her innocence.

CARTER

She brought me only ignorance.

YORK

I tell you, you shan't go to her now.

CARTER

But she must see how I care for her. She mustn't think I don't understand. She must let me help her—be kind to her. You don't think I have come to take her away unwillingly?

YORK

Then why are you here?

CARTER

Because I don't want her to be afraid.

YORK

Damn you!

CARTER

Mr. York!

YORK

Why did you frighten her?

CARTER

I didn't frighten her.

YORK

What did?

CARTER

A fact. The commonest fact in life.

YORK

Which a man who knows life should have learned how to tell a....

CARTER

Most men don't have to tell women. Twice you've insinuated....

YORK

She left you; didn't she?

CARTER

Yes. She said nothing. She cried and she struck me.

YORK

[*Astonished*]

Struck you?

CARTER

Yes.

YORK

[*Coming closer to him*]

Then you *did* give her cause?

CARTER

I came to her with a man's love.

YORK

And acted like a—

CARTER

Say it.

YORK

Like a brute!

CARTER

[*He rushes at him, clutching his arms, but trying to control himself*]

Mr. York! I love her. Do you hear? I love her.

YORK

But forgot what kind of a girl she was.

CARTER

[Hardly believing]

What are you saying?

YORK

Isn't it the truth?

CARTER

[Still holding him and speaking tensely]

Do you think because the language men have to use is the same to all women, that the feeling back of it can't be different? Don't you know I felt differently? I tell you I love her. No, no, it wasn't as you think. I was kind. I understood she had never ... I understood. But I thought she knew what marriage was; thought she was happy coming to me; thought she was willingly coming to me. But she made me feel as though I weren't her husband. I was only a thief in her room. Not the man she loved; but a criminal!

YORK

[Staring at him]

A criminal! You, *too*!

CARTER

Yes. And don't *you* feel like a criminal? Didn't you give her to me?

YORK

[With indignant sarcasm]

I thought I gave her to a man of honor.

CARTER

Yet you never asked me one question. I never thought of it myself till she struck me. Then the crime we had done her stunned me—before I could talk to her. I didn't blame her. I blamed myself and you: for you gave her to me, as the service says; but you didn't tell her a single thing about

what was to happen. And I took her from your hands—I who had talked of everything our life was to hold together—everything but *that*.

YORK

Carter!

CARTER

We've made the fact of marriage seem horrible. Oh, I'm ashamed to my soul of my part in this crime.

YORK

How dare you speak like this!

CARTER

But isn't it the truth? Did you or I do anything to make her see the beauty of this? Did you or I tell her the simplest fact? Did you or I do anything else to protect her?

YORK

Do you realize—

CARTER

Oh, if you'd seen the look in her eyes—the helpless shocked expression. Instead of the man's pure love *I* brought her, she might have had to face anything, anything. Think of it: *anything*! Good God! It's terrible. She was helpless and she knew nothing—nothing. [*Going to him*] But you and I knew: you knew life, knew men. Yet neither you nor the minister ever asked me one question. You never asked me what was also her right to know before she came to me. You never asked me what my life had been or whether I was *fit* to be her husband. [*YORK tries to protest*] Oh, you must listen to me; for you stand there judging me and forgetting what you, her father, had done to her. I'm ashamed of myself and so should you be. You asked me about my bank-account but you never asked me about my body.

YORK

[*Fundamentally offended*]

Do you think I would have insulted you with such a question?

CARTER

But you were willing to take a chance on your daughter.

YORK

No man who wasn't decent would have married a sweet pure girl like Janet.

CARTER

Wouldn't he? I know hundreds!!

[As they stand there tense, facing each other, the door opens; they turn toward it. There is a pause and MRS. YORK, almost a changed woman, slowly comes into the room. She closes the door. No word is spoken. CARTER stands there looking at her in question. Her eyes are on the ground. YORK moves as one dazed to the deep chair and later sinks into it, staring fixedly before him]

CARTER

[Very quietly]

She knows I am here?

MRS. YORK

Yes.

CARTER

She'll see me?

MRS. YORK

She sent me away.

CARTER

[Understanding]

She wants to be alone.

MRS. YORK

Yes.

CARTER

[After some hesitation he goes slowly to JANET'S door and knocks, speaking with ill-controlled emotion]

Janet! Janet! It's Carter. I shan't see you till you wish me. But don't be afraid, little girl. Don't be afraid any more. We'll go away together and everything will be as you wish, everything as you wish—

[He waits but there is no answer. He sits upon the sofa unable to speak]

MRS. YORK

[She crosses to him, placing her hand on his shoulder]

Don't, Carter.

CARTER

[With deep conviction]

It can never be the same.

MRS. YORK

In time.

CARTER

No. She'll never forget the shock—that first shock.

MRS. YORK

Women do.

CARTER

How could they?

MRS. YORK

She loves you. She broke down and cried. She sees now it wasn't your fault.

CARTER

But it was.

MRS. YORK

[As she sits down slowly on the sofa beside him]

I never knew there could be girls like Janet.

CARTER

She must see there are other things in marriage than this. She must. *[He knocks at the door again]* Janet! Janet! Let me be your friend! I'll protect you. It's my right now. I love you, little girl. I'll wait till—*[But there is no answer. He sits down again, murmuring]* It could all have been spared if one of us had had a little courage.

MRS. YORK

[Staring before her]

Yes; it takes courage.

CARTER

Why should it?

MRS. YORK

She knows now.

CARTER

And it all could have been so simple.

YORK

[Still staring guiltily before him]

Criminals!

[MRS. YORK looks slowly at him, but CARTER's eyes lift to the door, hoping it will open again. There is a long silence. Then the curtain slowly closes them from view]

Transcriber's Note

Inconsistencies in hyphenation have been standardized.

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